of Appeals for the Fourth Circuit in case No. 26–1785 is recalled and stayed pending the filing and disposition of a petition for a writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

It is so ordered.

JUSTICE JACKSON, dissenting.

I would deny the stay. In my view, the applicants are not likely to succeed on the merits of their argument that the Fourth Circuit lacked statutory jurisdiction. See *Brown* v. *FCC*, 189 F. 4th 362, 382–383 (CA4 2026) (Wynn, J., concurring), App. to Emergency Application for Stay 55 (concluding there is statutory jurisdiction on constructive-denial grounds because "an agency may not reserve to itself the power to defeat judicial review through delay or inaction"); see also *Santos-Zacaria* v. *Garland*, 598 U. S. 411, 417 (2023) (explaining that the Court "routinely" treats threshold requirements claimants must complete before filing a lawsuit as "nonjurisdictional" and has "yet to hold that any statutory exhaustion requirement is jurisdictional" (internal quotation marks omitted)).

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